

Court No. - 39

Case :- WRIT - C No. - 30926 of 2021

Petitioner :- M/S Friends Land Developers

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Vibhu Rai, Abhinav Gaur, Sr. Advocate

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Krishan Pahal, J.

As prayed, put up this matter on 6th December, 2021 as fresh.

Order Date :- 25.11.2021

Brijesh

Court No. - 29

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Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Vibhu Rai, Abhinav Gaur, Sr.
Advocate

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Pritinker Diwaker, J.

Hon'ble Ashutosh Srivastava, J.

The writ petitioner which is a registered partnership firm engaged in the construction and development of housing complex and stated to have developed the housing project named as "Gulmohar Greens" situated at 95, Katori Mill, Mohan Nagar, District Ghaziabad, has challenged the Electricity Supply Code (13th Amendment), 2018 as ultra vires being violative of Article 14, 19(1)(g) and 300A of the Constitution of India amongst other reliefs.

The submission is that the petitioner at the time of the development of the housing project "Gulmohar Greens" had made provisions for Single Point Supply and set up all infrastructure accordingly. Later the Clause 4.9 of the Electricity Supply Code, 2005, has been amended by the impugned 13th Amendment whereby all Single Point Supply have been directed to be converted to Multi Point Supply.

Learned Counsels for the parties agree that the issue raised in this writ petition is already gaining the attention of this Court in Writ Petition No. 4545 of 2019. Learned counsel for the petitioner has also placed before us some orders passed by the coordinate Benches based on the order passed in Writ Petition No. 4545 of 2019 and submits that the petitioner is also entitled to similar relief.

In view of the above, we are of the opinion that the order operating in Writ Petition No. 4545 of 2019 may also be made operative in the present writ petition, however, with the rider that the petitioner shall charge the tariff as per the applicable tariff order only from the occupants of the flats of multistory towers against the consumption of electricity which is supplied through it by the licensee.

Let all respondents file counter affidavit within four weeks. Rejoinder affidavit, if any, may be filed within two weeks thereafter.

Connect with Writ-C No. 4545 of 2019 (M/S Maxblis Construction Pvt. Ltd. vs. State of U.P. and 4 others).

List immediately after expiry of six weeks.

Order Date :- 20.12.2021

Vandana